Georgia Tech Privacy Policy Review & Surveillance Policy Design

CS 4726 - Privacy Tech Policy Law

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I. Introduction

Policy governance is especially critical in universities because they collect massive amounts of data for young adults beginning to form their worldviews. Without proper policies and procedures, technologies that process private data, such as surveillance technology, can cause harm to individuals. These policies allow us to benefit from these new technologies, while also building trust and governance within the community. The objective of this report is to analyze privacy risks for Georgia Tech's privacy policies and provide recommendations to mitigate these risks. The scope of our policy analysis is limited to:

- Data Governance & Management Policy [1]
- Security Camera Use Policy [2]
- Privacy & Legal Notice [4]

II. Methodology

Our team conducted analysis on three policies mentioned above. Each policy was analyzed by observing risks associated with it. These risks were compiled into the Policy Comparison Matrix, Figure A, which allowed us to find inconsistencies and risks across policies to support our recommendations table. Additionally, our recommendations are supported by examples from other universities that address gaps and missing elements in Georgia Tech's policies.

Furthermore, we conducted observations of surveillance technologies on campus by examining the routes we travel daily. We identified the implementation difficulty and privacy impact/risk as follows:

Implementation Difficulty	Definition and Criteria
High	Requires significant organizational, technical, or financial resources
Medium	Requires coordination between multiple offices and/or a moderate amount of policy revision.
Low	Minimal organizational or technological effort to update changes and implementable within a single office or department.

Figure 1. Implementation Difficulty Assessment Criteria

Privacy Impact/Risks	Definition and Criteria
High	Data is not publicly available and its disclosure results in the exposure of personally identifiable information (PII) to unauthorized or malicious individuals, posing a risk to individual and campus safety. Additionally, these disclosures lead to legal, regulatory, or contractual violations, including obligations to report incidents to government authorities and affected individuals.

Medium	Data is not publicly available and usage of that data is not aligned with the established policy, resulting in the disclosure of personal information that is hard to identify an individual and does not impose major harm.
Low	Data shared does not contain personal or sensitive information and is intended for public disclosure. Situations where the loss or disclosure of this data will not affect Georgia's Tech reputation, governance, operations, and individuals.

Figure 2. Privacy Impact/Risk Criteria

III. Review of Data Governance & Management Policy

Policy Scope: The Data Governance and Management Policy covers the use of Organizational Data, and is applicable to all GT units and Information Systems. This policy does not cover personal data, which includes any documents or intellectual property owned by students, professors, and other individuals. This policy also does not cover public access to Organization Data.

Definitions: Organizational Data is defined as "data generated, owned, or managed, by or on behalf of, Georgia Tech including all data to which Georgia Tech has been granted stewardship by third parties. This policy further defines three other types of data:

1. Protected Data is the default categorization for Organizational Data, and it considers information that is not generally available to parties outside of Georgia Tech.
2. Public Data is a data protection categorization that considers information targeted for public use, such as the Georgia Tech website.
3. Regulated Data is a data protection categorization that considers information bound by applicable federal, state, local, or international laws and regulation, and/or contractual obligations. Data in this category must be guarded from disclosure in order to avoid financial fraud or violations of laws and/or contractual obligations.

This privacy policy does not define Personal Data.

Surveillance Data: There is no direct reference to video/photo and biometric data, nor surveillance technology [Fig A].

Governance Structure: Organizational Data is grouped into two protection categories, Protected Data and Public Data. All Protected Data must comply with the applicable Cyber Security Data Protections and Protected Data Practices. Additionally, data is also assigned a status of Regulated Data if applicable. If data is Regulated, it is also subject to the controls of applicable federal, state, local, and international laws, as well as specifications contained by GT grants, contracts, and other agreements.

Data is divided into data domains and data sub-domains and are stored in Information Systems, which is defined as technology, software, and services administered for the purpose of creating, storing, managing, using, and gathering data and communication at Georgia Tech.

Access to data is managed through a layered hierarchy of responsible roles, with each role being appointed by the one preceding it. From greatest privilege to least privilege they are: Data Owner (President of Georgia Tech); Data Trustee (Vice President and/or higher positions); Associate Data Trustee; Data Steward; Associate Data Steward; System Owner; Technical Manager; Data Administrator [1].

These roles are also assigned to the following committees:

1. Data Governance Committee: Comprised of selected **Associate Data Trustees** and other GT leaders as appointed by the **Data Owner** and are responsible for recommending policies, approving procedures, and providing guidance for data governance, security, and compliance.
2. Data Management Committee: Comprised of selected **Data Stewards** and other GT leaders as appointed by the **Data Governance Committee** and are responsible for making decisions regarding substantial changes to Organizational Data that apply across different **Data Domains**.
3. Data Domain & Technology Sub-Committees: Comprised of selected **Associate Data Trustees**, **Data Stewards**, and technology experts who represent the Organizational Data and Information Systems use within a **Data Domain**.

Additional roles include:

1. Data User: Georgia Tech employees, affiliates, contractors, consultants, and vendors who access Organizational Data to perform their assigned duties.
2. Human Resources: The office responsible for notifying the appropriate roles when an employee is terminated or has a change in status that requires a change in said employee's access to Organizational Data and Information Systems,
3. Chief Information Officer (CIO): Responsible for the technical infrastructure of Georgia Tech to support the Organizational Data needs and assets.
4. Chief Information Security Officer (CISO): Responsible for the technical infrastructure of Georgia Tech to support the Organizational Data needs and assets.
5. Data Governance Officer: A representative appointed by the Data Governance Committee that works closely with other GT entities to manage Organizational Data. [1]

Policy Gaps: This policy does not explicitly address video surveillance data [Fig A]. Because of this lack of specification, it is uncertain whether video surveillance data falls under the management policy of Organizational Data or Personally Identifiable Information.

IV. Review of the Security Camera Use Policy

Purpose: Security Cameras are used at the Georgia Institute of Technology to deter, detect, and support the prosecution of wrong-doing on campus [2] to create a safe campus environment for students, faculty, staff, and visitors.

Locations: The cameras' locations are coordinated with the Georgia Tech Police Department's (GTPD) Security Specialists or Georgia Tech Research Institute (GTRI). GTPD will install and manage the security cameras for the Georgia Tech campus whereas GTRI will coordinate their own installation and management of security cameras within GTRI buildings. For both departments, cameras can not be placed or positioned in such a way to compromise a person's expectation of privacy [2].

Within our Policy Comparison Matrix, we found that the purpose of data collections is unclear, creating a Reputational Risk for Georgia Tech. This is because according to the Security Camera Policy, the installation and monitoring of all such video surveillance devices shall be solely for the legitimate purpose of protecting human life, personal property, and the Institute's interests and assets [2]. Without a clear explanation on what constitutes a person's expectation of privacy and what are the Institute's interests, there are risks that exploit individual privacy rights in this surveillance.

Transparency: The Security Camera policy does not explicitly require signage or notification to a person that they are entering an area under surveillance. As stated in the Policy Comparison Matrix and observations on campus, we found this to be true in that the Notice of Surveillance was not clearly stated within all policies that we have analyzed nor present in regions where cameras were deployed as shown in the Policy Comparison Matrix. This creates a Lack of Transparency Risk because individuals may be unaware that they are being recorded when they enter a region of campus.

In addition, GTPD did create an internal request for video footage where students can submit an email request or submit a form to the GTPD's Records Division to access video footage. However, the form link to the GTPD Report Request Form was inaccessible on the website of the Security Camera Policy, creating an unprofessional and opaque view of Georgia Tech data collection [2].

Data Retention: The policy does not state how long surveillance footage is stored at Georgia Tech. It does state that it complies with the University System of Georgia (USG) Records Retention which states that Security Camera Surveillance Records can be retained for 30 days or more until the settlement of known civil claims [3]. Currently, this is the standard for all universities in Georgia; however, it is unclear whether Georgia Tech has a separate policy that deviates from this. This creates a Governance Risk because of Georgia Tech's unclear data retention policies, which can lead to mishandling of personal data, creating privacy risks. Furthermore, we attempted to identify another Georgia Tech policy that could contain data retention requirements and relate to the Security Camera Policy. However, based on our analysis of the policies, we could not find a policy as stated in the Policy Comparison Matrix [Fig A].

Access Control: Access to the Security Camera footage is limited to GTPD and GTRI employees depending on where the camera is located. Other individuals, such as students, may gain access if requests are sent to the GTPD Records Divisions [2]. Furthermore, access to Georgia Tech's VMS and information via Georgia Tech computer system is limited to those employees and faculty who have a legitimate business reason to access such information [2]. This policy should clearly define what a legitimate business reason is to mitigate privacy and reputational risks to the campus because without a precise definition, the standard may be applied inconsistently, increasing the likelihood of misuse access [2].

Data Sharing: Surveillance footage is not shared with law enforcement or other entities without the permission by the Institute or required by law, such as law enforcement investigations [2]. This limits third party access to campus security, protecting the privacy of the individuals on campus. Furthermore, in Chief Connolly's interview, he emphasizes this by saying that Georgia Tech requires legal paperwork in order to gain access to GTPD systems.

V. Review of the Privacy & Legal Notice

The Privacy & Legal Notice [4] for the contains three main sections, one regarding data collection from its website, one regarding compliance with the European Union's General Data Protection Regulation (GDPR), and one regarding compliance with the People's Republic of China's Personal Information Protection Law (PIPL).

Definitions of Personal Data: The website portion of the Privacy and Legal Notice includes a definition of the types of data it collects from the website and explains what that data might be used for [4]. The EU GDPR section of the Privacy and Legal Notice defines Personal Information as that which they have a lawful basis to collect and include examples of lawful bases data they collect might be used for. The notice also gives examples of data they collect which includes "some sensitive personal data obtained with prior consent" [4]. It is not clear what type of sensitive data is collected here or how consent is acquired which may lead individuals not to understand exactly what data is being collected from them. The PRC PIPL section is very similar to the EU GDPR section of the notice with almost the same definitions of legal bases.

Video or surveillance data: The website section of the notice does not include references to video or other surveillance data, but it does stress that data collected through cookies is not used to track individuals but the GDPR and PIPL both include photo data in their definitions of personal information. There is no mention of biometric data anywhere in the Notice.

Data Subjects: The data subject relating to the website section are individuals or entities that access any Georgia Tech website. There is no list of exactly which Georgia Tech websites this refers to, however. The data subjects in the GDPR and PIPL sections are listed as "students, employees, applicants, research subjects, and others involved in its educational, research, and community programs" [4]. More information regarding who constitutes as a data subject under the GDPR can be found in the EU General Data Protection Regulation Compliance Policy [6] which is linked to this notice.

Collection of Personal Information: Website information is gathered for "routine information security and service delivery purposes including helping us understand aggregate uses of our site, track usage trends, improve our services and respond to security events" [4]. The GDPR and PIPL sections both outline how data is used for academic admissions, enrollment, educational programs, job hiring, provision of medical services, participation in research, development and community outreach.

Data Sharing: The website portion of the Notice includes a reference to "a third-party technology" used to analyze search engine usage [4]. This third party is not named and thus individuals cannot fully understand how their data might be used when visiting the website. Otherwise, the Notice gives clear indication of how and why data is collected and used.

The GDPR section includes a subsection about how data will or will not be shared with third parties. It also emphasizes how data is shared with the Board of Regents at the University System of Georgia as required by Georgia law. Further on is a section explaining how third-party

service providers are bound to appropriate levels of security as outlined in their contract with Georgia Tech. The PIPL section is similar to the GDPR section but includes parts regarding the transfer of information across borders.

Individual Rights: The website section does not include anything regarding individual rights or access to data collected through the website. The GDPR and PIPL sections both include a list of rights which apply to data subjects under each regulation. It is unclear whether individuals who do not fall under the jurisdiction of the EU or PIPL have access to these same rights. There is also no link to other policies such as the Family Educational Rights and Privacy Act (FERPA) and Applicant Records [7] which may give more information about individual rights outside of the EU and PRC.

Individuals under the GDPR and PIPL are allowed to access their personal information, rectify incorrect data, and know how long their data is being held for. Individuals are not allowed to outright remove their data, but they can withdraw consent for certain data collection methods they opted into beforehand. Students and faculty are not effectively able to opt-out of data collection as their refusal may prohibit them from receiving education, employment, or research from Georgia Tech. According to the EU General Data Protection Regulation Compliance Policy [6] the GDPR applies only to personal data collected or processed about anyone located in the EU, regardless of whether they are a citizen or permanent resident of an EU country meaning the rights outlined in the GDPR section are exclusively for those physically in the EU.

VI. Observation from Georgia Tech Systems and Technologies

System	Description	Data Collected	Privacy Notice	Observations
Campus Security Cameras	Cameras installed around campus buildings and outdoor areas connected with the GTPD VMS, as shown in Figure 4.	Video feed of surrounding area, including individuals	Security Camera Use [2]	No visible signage that states there is a recording device in the area
Buzzcard Scanners	RFID scanners to access buildings in the Georgia Tech campus	Georgia Tech Identification Number and possibly more	BuzzCard Terms & Conditions – BuzzCard [7]	Mostly at entry points and does not explain what information is being collected
Flock Safety LPR	Automated License Plate Readers Around the perimeter of Campus	License Plates, Characteristics, Timestamps, and Location	**N/A**	No clear signage on the use of Flock Devices

Figure 3. Physical Georgia Tech Systems

System	Description	Data Collected	Privacy Notice	Observations
Canvas	Application for students to manage assignments and communications in classes	Academic Performance, Classes Taken	Canvas Data Retention [9]	Not a lot of information on how Georgia Tech manages the Canvas system

Github Enterprise	Application to manage code version control	Code written, history of commits, organizations they're part of	https://support.cc.gatech.edu/support-tools/faq/what-gt-github-enterprise [10]	Upload only category 3 data (FERPA & non-sensitive research data)
VMS	Video Management System used by GTPD and GTRI IDS to manage security cameras on campus	Video Footage of individuals entering and walking around campus	**N/A**	Not included in the Data Asset Inventory, resulting in Questions on Governance [10]
Data Domain	List of Data Domain Registry at Georgia Tech as shown in Appx 1: [11]	Dependent on the data domain	Data Governance and Management Policy | Policy Library [1]	Unclear description on what type of data is in the practice of recruiting and deploying at Georgia Tech.

Figure 5. Digital Information Systems (*Other information systems include Gradescope, Docusign, Degreeworks, and Cloud backup systems)*

VII. Identified Privacy Risks and Governance Gaps

Governance Confusion: In the Security Camera Use Policy, Georgia Tech partners with GTPD to oversee the installation and management of VMS on the GT campus. However, despite the fact that these cameras and software are used in service of Georgia Tech, they do not appear in the Data Asset Inventory [11]. The Security Camera Use Policy also cites GTPD Video Surveillance System Policy 7-05c, 4.1, which is not directly accessible to the public and could cause confusion over how they may be surveilled on campus, creating privacy concerns.

Lack of Transparency: There is a common theme of broad and unclear language throughout the policies. For example, in the Security Camera Policy, it states that access to systems is "limited to those employees and faculty who have a legitimate business reason" [2]. Despite being the major reason for accessing potentially sensitive data, "legitimate business" is left undefined in the policy. While some language may require vagueness to avoid legal liability, there is still room for improvement when compared to policies of other universities. In contrast to Georgia Tech's Security Camera Policy, the University of Northern Iowa defines acceptable and unacceptable uses of video surveillance in plain, readable terms [13]. These definitions would help eliminate future data disclosure which could lead to privacy concerns.

Georgia Tech also lacks official notice for security camera signage, both within the Security Camera Policy and physically on campus. With the recent addition of Flock cameras and technology to campus, student scrutiny of video surveillance data has been on the rise.

Lack of Enforcement: For all three of the reviewed policies, there is a lack of any specific procedures for enforcement of the policies, resulting in risks in misuse and increasing privacy concerns. In the Data Governance and Management Policy, it is stated that compliance with the policy will be "periodically audited" and to send any reports of violations to datagovernance@gatech.edu or Georgia Tech's Ethics Hotline. However, there is a lack of information around exactly how often enforcement will be audited, whether the auditor will be internal or external, and any consequences for non-compliance. In the Security Camera Use

Policy, the consequences for non-compliance are more explicit, outlining a loss of privileges, disciplinary action, and criminal and/or civil liability. Users can report violations to GTPD or the GT Ethic's Hotline. It is implied that GTPD is responsible for investigating violations as an operation authority, but it's not explicitly stated. Under the Privacy and Legal Notice, users under EU GDPR are reserved the right to complain to EU supervisory authorities, while domestic users and users under PIPL can report to the Office of Ethics and Compliance through email. However, there is still no audit mechanism stated or consequences of violations.

Reputational Risks: While the reviewed policies from above are all legally sound, the complexity of navigating these policies presents a significant challenge for users and can be a potential reputational risk to the school. Users are often required to follow links to related policies or external sites, which sometimes can be broken, unavailable or outdated [Fig 6]. The fragmented structure of these privacy policies increase the cognitive load on users, requiring more effort to understand the outlined content and making it difficult to engage with the policies, effectively inspiring distrust in the privacy stance of the Institute which is a privacy concern.

None of the three policies directly address procedure in the case of breach. The Privacy and Legal Notice redirects to the EU GDPR's breach procedure for EU users, but does not cover domestic users or users under PIPL. Neither the Data Governance and Management Policy nor the Security Camera Policy make any reference to procedure in response to data breaches.

VIII. Policy Recommendations

After analyzing the identified privacy risks, we have come up with the following recommendations to help moderate or completely eliminate the effects of each risk category:

Governance Confusion:

Recommendation: Update the Data Asset Inventory to include software and equipment usage by GTPD to help clarify which software is used by GTPD and who it is managed by.

***Justification*:** The current Data Asset Inventory does not accurately show Georgia Tech's internal asset management and could portray to the public that the Institute does not have a complete picture of their departments.

Implementation Suggestion: Have a quarterly review which would require departments to synchronize their inventories and provide an update on any new equipment or software assets. This would be a medium implementation difficulty as it would require significant coordination between almost all departments and would need a moderate amount of policy revision.

***Recommendation**:* Publish GTPD policies which are currently not available to the public. For example: (GTPD Video Surveillance System Policy 7-05c, 4.1).

***Justification**:* Policies, referencing public facing policies that are not publically available, can cause mistrust in the university's systems and departments. Since privacy is built on trust, ensuring there is a culture of trust and transparency is crucial for establishing adequate privacy protections. We reached out to a Data Steward in the Data Domain Registry [12] to get more information about the internal privacy procedures at Georgia Tech. She outlined the process of developing contracts with external vendors, ensuring procurement and privacy is involved in the process. She explained when Barnes and Nobles started offering a textbook concierge service where student data had to be given to Barnes and Nobles, privacy was a main concern that they addressed and worked to protect. Therefore, having clearer policies available to the public will show Georgia Tech's initiatives in being a leader of privacy for students, faculty, staff, and more.

***Implementation Suggestion**:* GTPD must either publish their policy library or provide a way for the information in those policies to be accessed by the public. This would be a low implementation difficulty as only the GTPD would need to rework their website.

Lack of Transparency:
Recommendation: Creating clear standards and suggestions to highlight what is acceptable use of Georgia Tech's VMS systems.
***Justification**:* While vague language can be used to remove liability, it increases the risk of mistrust in the school's usage of any software or equipment. For example, the Security Camera policy states that Georgia Tech "ensure video surveillance devices are not placed or positioned in such a way as to compromise a person's expectation of privacy." However, it is not clear on what the standard is for "a person's expectation of privacy." In addition, when the institute states "employees, contractors, representatives, and others," it does not clearly express what Georgia Tech means by "others," leading to more mistrust in how Georgia Tech and possibly 3rd parties use student data.
***Implementation Suggestion**:* Create clear standards in terms of surveillance policy such as Stanford's video safety security systems [14], to communicate to the public exactly how surveillance systems are used on campus. This would be a medium implementation difficulty since it requires a moderate amount of policy revisions.

Lack of Enforcement
Recommendation: Implement clear signage around vehicle and pedestrian entrances to the Georgia Tech Campus as well as any buildings with internal VMS systems.
Justification: The Georgia Tech population has become more concerned about surveillance in recent years, and adding proper signage to show where surveillance is or is not occurring will help to build trust within the community. Adding signs can also help with reducing crimes.
Implementation Suggestion: Creating a collaboration between the GTPD, the Office of General Counsel, and students to make sure that this signage is viewable to individuals on campus. This would be a high implementation difficulty due to the cost and coordination of offices required.

Reputational Risk:
Recommendation: Redesign the flow of the website to make information more clear and to make our privacy values more explicit.
Justification: Due to the organization of the Georgia Tech privacy resources, finding the information you need can be very difficult leading to more confusion. Additionally, it gives the impression privacy is not taken as seriously as it may be.
Implementation Suggestion: The office of General Counsel should work with the Office of Information and Technology to focus on making policy websites accessible to individuals by reducing the number of dead and non-related website links.

Individual Rights:
***Recommendation*:** Update the Privacy and Legal Notice to address confusion about individual rights.
***Justification*:** Individuals who do not fall under the GDPR's or PIPL's jurisdictions may not understand what rights they have regarding their data that may come from other Georgia Tech Policies such as the Data Governance Policy or laws such as FERPA. Since the Privacy and

Legal Notice is one of the first policies which someone may come across, it is important this policy is linked to other policies related to privacy and data handling.
***Implementation Suggestion*:** Add a link above the GDPR section of the Privacy and Legal notice directing to the Personal Information Privacy Policy, Data Governance Policy, or FERPA policy which defines the responsibilities of Georgia Tech employees when dealing with personal information. This would be a Low Implementation Difficulty since only a few lines of the Privacy and Legal Notice need to be changed which can be done by the Office of Ethics and Compliance.

***Recommendation*:** Extend the core individual rights granted to those under the jurisdiction of the GDPR to all data subjects regardless of physical location.
***Justification*:** The GDPR requires that data subjects have certain rights with regard to data collected around them. Complying with this requirement for only individuals whose data was collected in the EU means there must be multiple systems for handling data dependent on if it was collected in the EU or not. Taking the stricter privacy law, the GDPR, would allow for a simplification of the system and give individual data subjects more control over their data. This makes this a medium privacy risk.
***Implementation Suggestion*:** Implementing this recommendation would require large institutional changes to how data is handled by the institute and would need a lengthy legal council to ensure compliance with existing laws such as the Open Records Act or FERPA. Therefore, this recommendation would constitute a high implementation difficulty.

Recommendation	**Problem Addressed**	**Responsible Office**	**Implementation Difficult**	**Privacy Impact**
Update Data Asset Inventory to include GTPD software and equipment usage.	Lacking an accurate reflection of internal asset management, shows the Institute may not have a complete picture of their departments.	Office of Information Technology (OIT) / GTPD	Medium	Medium
Publish GTPD policies which are currently not available to the public.	Reducing mistrust where policies which are referenced within public facing policies that are not also publically available.	GTPD	Low	Medium
Create a surveillance standard to highlight who is responsible for VMS systems.	Reducing mistrust in school's usage of equipment because of vague language on who is in charge.	GTPD / OIT / Office of General Counsel	Medium	Medium
Redesign the website to make information clearer and the privacy values more explicit.	Organizing privacy resources to find information quicker will give a better impression on Georgia Tech's attitude toward privacy.	Policy Steering Committee	High	High

Update the Privacy and Legal Notice to address confusion about individual rights.	Give individuals a method of accessing additional information about data management and privacy at Georgia Tech.	Office of Ethics and Compliance	Low	Low
Extend individual rights granted to those under the GDPR to all data subjects.	Allow for individuals to be more informed on how their data is used and how long it may be retained for.	Office of Ethics and Compliance	High	Medium
Put signs up at campus entrances and buildings with VMS systems.	Adding signage to show where surveillance is will help build trust and reduce crimes.	GTPD	High	Medium

Figure 7. Recommendation Table

IX. Conclusion

Through our comprehensive review of Georgia Tech's Data Governance Policy, Security Camera Use Policy, and Privacy and Legal Notice, we have discovered several Governance Risks and have detailed specific recommendations to help counter those risks.

Our most pressing *governance gaps* we found in this analysis were:

- The barrier the policy library acts as to finding information about Georgia Tech's management and handling of data. The existence of dead links in each policy means important information that should be publicly available is harder or even impossible to find.
- Surveillance exists in a kind of governance black box completely isolated from the main Data Asset Inventory. This is compounded with the fact that many of GTPD's policies are not public facing documents which means information about how security cameras and other VMS are used or not is hard to understand. This oversight could lead to large privacy issues down the line if laws change, or new technology is introduced.

To reduce some of the issues caused by this risks and others, *we recommend*:

- Georgia Tech should implement strong hierarchical design principles which allow for a user to easily navigate and find the information they are looking for in the policy library. Doing so will help to emphasize transparency, build trust, and communicate the culture of privacy prevalent at Georgia Tech by making sure everyone can access and understand the policies laid out to protect their privacy.
- Clear standards which identify the scope of Georgia Tech's governance procedures should be implemented, similarly to Stanford's' video safety security systems [14] and add a section mandating signage around security cameras and other surveillance devices. We also recommend that any internal policies which are referenced in public facing policies either be made public or copied into a public facing document to ensure maximum transparency with the public.

Implementing these recommendations will not only address possible privacy risks, but also improve transparency with the public which would foster a culture of privacy at Georgia Tech.

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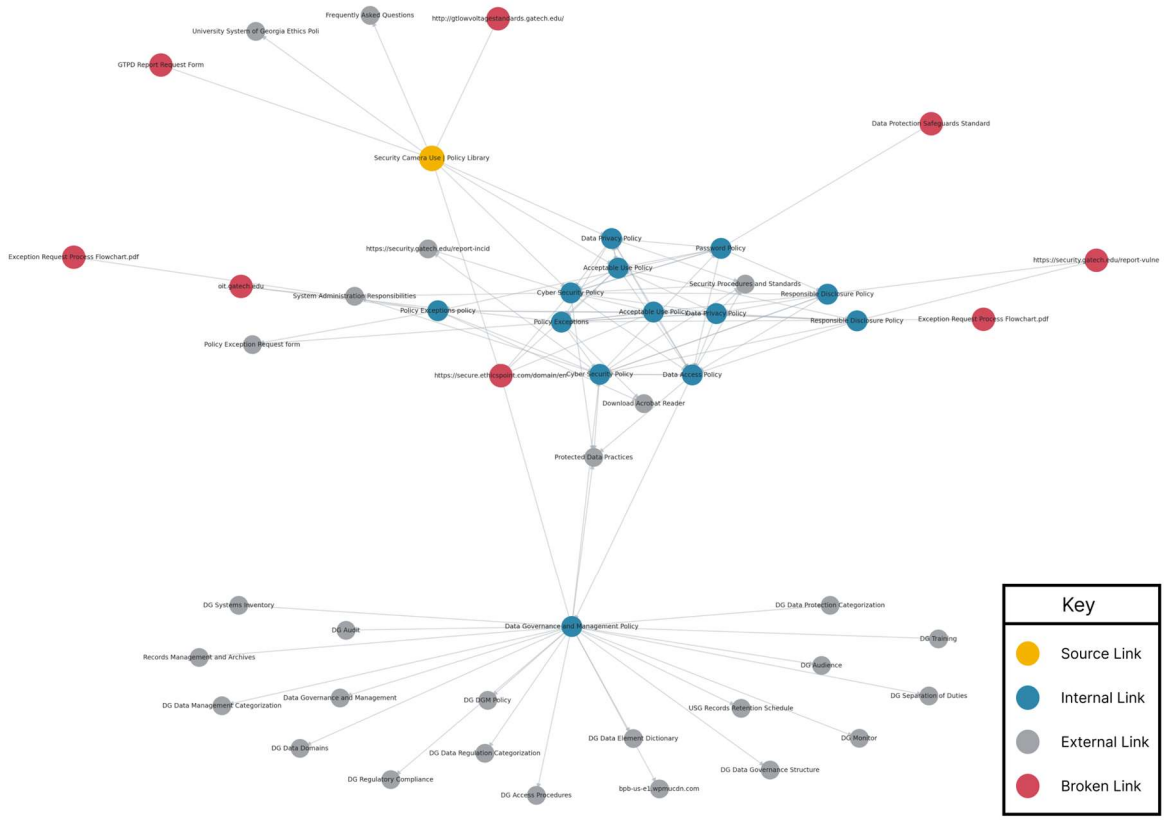


Figure 6. Diagram of the hyperlink network accessed from the Security Camera Privacy Policy
Figure 7. Recommendation Table

Appendix

Policy Issue	**Data Governance & Management Policy**	**Security Camera Use Policy**	**Privacy & Legal Notice**	**Observations / Gaps**
Definition of Personal Data	Defines ‘Organizational Data’, ‘Protected Data’, and ‘Regulated Data’.	Policy defines only "Video Surveillance Device" and "Video Management System (VMS)" as technical terms.	Defines ‘Website Data’, ‘Cookie Data’, and ‘Personal Data’.	Governance policy defines “Organizational data” whereas Privacy & Legal notice uses “Personal Data / Information”.

Treatment of Video or Photo Data	No reference to video/photo data.	Defines how recorded images can or cannot be shared.	GDPR and PIPL sections refer to photo data as a type of personal data.	No explicit clause defining treatment of video/photo data for Data Governance & Management Policy and Privacy & Legal Notice.
Surveillance Technologies Mentioned	No mention of surveillance technology.	Mentions VMS and VSD as the systems used for surveillance.	No mention of surveillance technology.	There is no mention of surveillance technologies used except in the Security Camera Use Policy.
Purpose of Data Collection	Explains how data collection is necessary for administrative functions.	Lists out the legitimate purposes for the collection of surveillance data.	Lists the legal bases for collecting personal and website data. *"admission, registration, delivery of classroom, on-line, and study abroad education, grades, communications, employment, applied research, development, program analysis for improvements, and records retention"*	All three are very unclear on what exact grounds data is collected, such as "information is critical".
Transparency to Individuals	Lacks mention of transparency obligations to individuals, only that "Data Users are responsible for safeguarding their access privileges."	Explains how internal requests for footage are handled. *"All requests to obtain recorded images must be submitted through the Georgia Tech Police Department Records Division."*	Explains the Open Records Act and how Data Subjects can access data collected about them.	Only the Privacy and Legal Notice explicitly mentions what policy entitles transparency for individuals.
Notice of Surveillance	No mention of surveillance notice.	Explains how camera placement is decided but does not mention any requirement of notice.	No mention of surveillance notice.	Surveillance notice is very unclear or either as no mention in these policies.

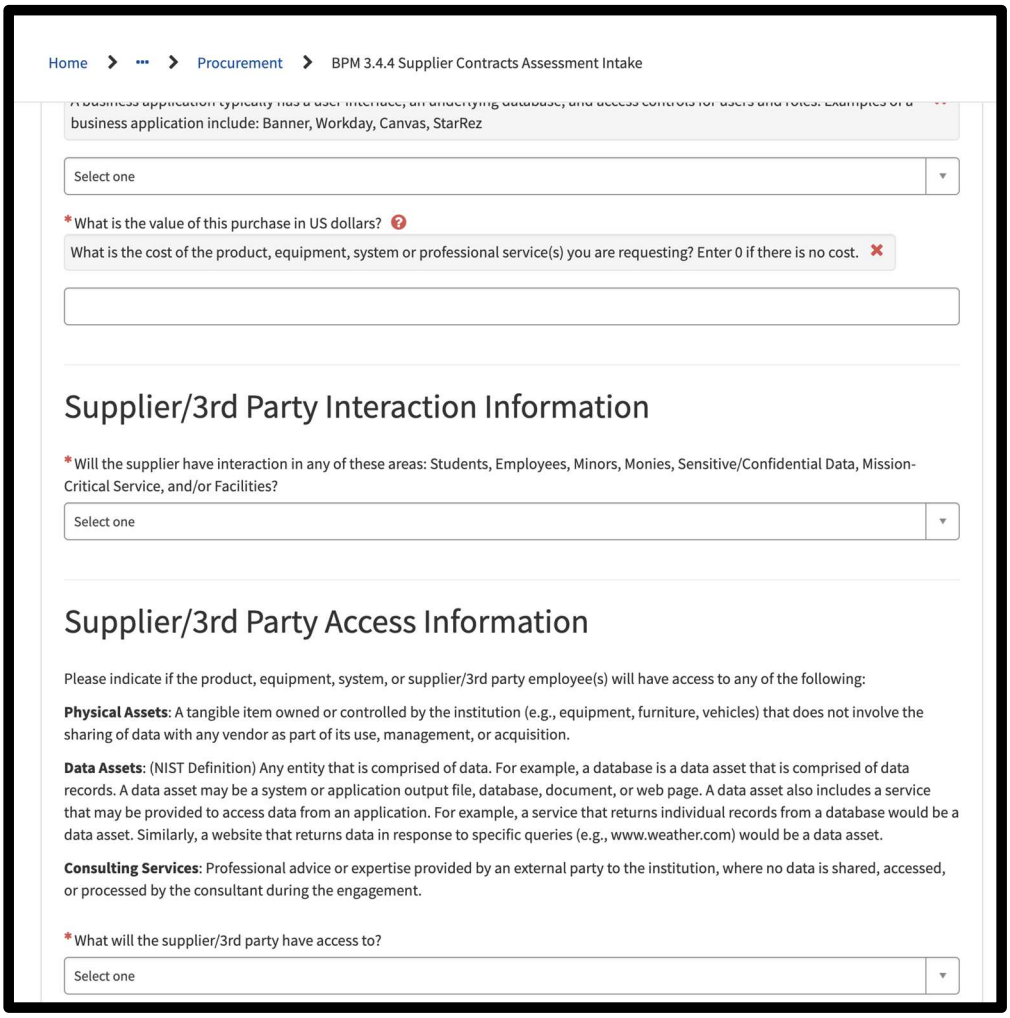
Data Retention Rules	Outlines how data retention must comply with USG standards and links to their website.	Does not outline data retention rules.	Outlines how data retention must comply with USG standards and links to their website.	It is hard to find a definitive answer as retention limits aren't explicitly stated, but rather linked to USG's website. USG Data Retention Schedule [3]
Access Controls	Explains the hierarchy and responsibilities of each role. "Data Owner→Data Trustee→Associate Data Trustee→Data Steward→Associate Data Steward→System Owner→Technical Manager→Data Administrator→Data User→Human Resources→Chief Information Officer → Chief Information Security Officer→Data Governance Officer"	Limited to employees with legitimate business reasons.	Only mentions preventing unauthorized access. "We have put in place reasonable physical, technical and administrative safeguards designed to prevent unauthorized access to or use of the information collected online"	Privacy policy does not define authorized access Very unclear on when access is given and how much data which person controls.
Data Sharing Rules	Mandates that rules and policies are made to prevent data dissemination.	Explains how images shall not be made public unless required by law.	Explains how data shall only be made public if required by law.	Very limited data sharing rules.
Third-Party Access	Vendors and contractors are included as "Data Users" subject to the same obligations.	Mandates no third-party access except with the institute's express permission.	Third parties only have access to the data they agreed to in the contract with GT or as required by law.	Determined on what contract or agreement that Georgia Tech has signed. Unclear what is required for the institute to give permission.
Law Enforcement Access	States that the policy applies to all GT units which may include	Outlines how the GTPD is responsible for the day to day use	Explains how data may be disclosed to law	Privacy Policy only mentions law enforcement

	GTPD.	of the VMS systems.	enforcement if required.	may be given personal information without specifying what personal information.
Governance / Oversight Authority	Specifically lists out responsibilities with specific roles and committees that determine who was the authority over the data.	Give the GTPD and GTRI responsibility over their respective systems. General IT safeguards to limit access and oversight for all use of VMS.	Explains exactly who is responsible for each part of the Notice.	Very clear about who in GT has access to certain data privileges.
Accountability Mechanisms	Monitored by a Data Governance Officer; subject to periodic state and university audits.	GTPD manages day-to-day operations. Violations risk lost privileges, administrative sanctions, and civil/criminal liability.	Managed by the Privacy Program of the Office of Ethics and Compliance.	Only the security camera has specific consequences.
Privacy Rights for Individuals	Does not mention explicit rights of the data subject over their information.	Cameras must not compromise reasonable privacy expectations. Internal requests for footage must go through the GTPD Records Division.	Mentions rights under the Open Records Act, GDPR, and PIPL.	There aren't easy mechanisms to access your information. None of the policies reference FERPA.
Policy Coverage of Surveillance Technologies	No explicit mention of surveillance technologies.	Explicitly covers Video Management System and Video Surveillance Devices.	No explicit mention of surveillance technologies or video data.	No explicit mention of surveillance technologies under the Data Governance Policy or the Privacy and Legal notice.

Consistency Across Policies	Replaces previous GT Data Access Policy and mentions several other policies and governance manuals.	Aligns with the USG ethics policy, Cyber Security Policy, and Data Privacy Policy.	Makes mention to the EU GDPR Compliance Policy and the Controlled Unclassified Information Policy. The latter leads to a dead link however.	They point to external frameworks but they do not reference to each other

Figure A. Policy Comparison Matrix

Procurement Form with Third Parties



Hello,

I am a student taking Privacy & Ethics in Computing (CS 4726) by Professor Annie Anton. Our current project is analyzing the privacy policies at Georgia Tech to provide recommendations to the Chief Privacy Officer, Tarryn Brennon. She actually talked to our class a few weeks ago as a guest speaker.

I'm reaching out to you because I saw your data on Georgia Tech's data domain registry (https://app.smartsheet.com/b/publish?EQBCT=ea839fc0fdd04657884583d69431c63d) as a Data Steward for Campus resources. I'd love to have a quick chat with you to understand the process of Georgia Tech's data stewardship! I'd mostly want to understand how the responsibilities were initially divided, what they entail, and try to identify any gaps that I can then bring up to improve Georgia Tech's processes. Any information you could provide would be helpful for my project!

Please let me know if you're available. I'd greatly appreciate the opportunity.

Thanks,

Reaching out to a Data Steward from the Data Domain Registry

GTPD Surveillance Privacy Policy

Purpose:

The Georgia Institute of Technology (the Institute) is committed to maintaining the safety of students, faculty, staff, and visitors of the Institute and its campuses. This policy outlines procedures for the use of Video Surveillance Devices and Video Management Systems in order to maintain safety without compromising privacy and compliance with applicable laws, regulations, and university policies. The purpose of this policy is to regulate the use, access, and placement of cameras systems used to observe and record public areas.

Scope:

This policy applies to all Institute Building Managers, Security Contractors, Security Equipment Installers, GTPD Employees, GTRI Employees, and all others with the capability of accessing, viewing or utilizing live or recorded footage associated with the video surveillance devices on any Institute VMS.

Definitions:

Institute	Georgia Institute of Technology
Video Surveillance Device	Any device capable of viewing, transmitting and/or capturing still or streaming video images, whether or not associated with monitoring or recording devices.
Video Management System	Referred to as “VMS” - is any electronic system capable of receiving, displaying, capturing, and/or recording images transmitted by cameras, whether across a network or within a closed circuit.
Public Areas	Areas where a reasonable expectation of privacy is not violated by recording acts that may normally be openly observed. This area includes, but is not limited to, campus grounds, academic hallways, classrooms, libraries, study rooms, work areas other than private offices, common gathering areas in residential housing buildings and the student clubhouse, porches, decks, fitness room, fitness center, game room, athletic training room, alleys, vending areas, service drives, and streets, athletic fields, audience seating, cash handling areas, dining facilities,

	hallways, laboratories, loading docks, sidewalks, other pedestrian walkways, parking lots, retail establishments, rooftops, and safes.
Private Areas	Areas in which there is a reasonable expectation that a user's behavior may not be openly observed. This includes, but is not limited to, areas where an individual might change clothing, residential housing rooms, bathrooms, shower areas, locker and changing rooms, individual dormitory rooms, kitchen work areas and private office spaces. An area which is public shall not be deemed to be a private area solely because there is only one person in that area at a particular point in time.

Authorized Uses:
The Institute's employees, contractors, and representatives having responsibility for installing, maintaining, having access to, having the capability of viewing, or otherwise having the ability to utilize VMS and video surveillance devices associated with any real property owned, leased or occupied by the Institute, or any entity with a Georgia Tech affiliation, shall utilize said video surveillance devices in a manner consistent with the U.S. Constitution, United States Federal law, Georgia State law, City of Atlanta municipal ordinances, Georgia Tech Police Department's (hereafter "GTPD") "Video Surveillance" policy, and Institute "Ethics" policy.

Installation of any video surveillance devices shall be coordinated with either GTPD's Physical Security Specialist in order to ensure video surveillance devices are placed in public areas and are not placed or positioned in such a way as to compromise a private area. No one is authorized to install security controls, to include video surveillance devices, web cams or other intrusive electronic devices used for surveillance, without the proper coordination with either the GTPD. The installation and monitoring of all such video surveillance devices shall be solely for the legitimate purposes of protecting human life, personal property, and the Institute's assets.

Recorded images shall not be made public, nor shall recorded images be released to, provided to, or otherwise made accessible to, any person, party or entity inside or outside of the Institute, without the Institute's express permission, or as required by law.

Data Collection:
All public area video surveillance footage to be stored will be securely transmitted to a secure server location on Georgia Institute of Technology Campus. Responsibility for the collection and storage and video surveillance will be divided between GTPD and GTRI. The GTPD's employees, as defined by the GTPD Video Surveillance System Policy, will be responsible for the data collection and storage of GTPD's VMS data on Georgia Tech Campus and GTRI's Research Security and Information Systems Department (ISD) will be responsible for the data collection and storage of GTRI's VMS data on GTRI property.

Data Retention:
All surveillance recordings shall be stored in a secure server location for a period of 30 days and will then be erased or written over, unless retained as part of a criminal investigation, a civil or

criminal court proceeding, or pursuant to a litigation issued by the University's legal counsel. Recordings may also be retained for other bona fide reasons as determined by GTPD and GTRI ISD, in consultation with the University's legal counsel.

Access Controls:
Access to Georgia Tech's VMS and information via Georgia Tech computer systems is limited to those GTPD employees and ISD personnel in charge of the VMS system. The Institute has policies and procedures in place to complement the physical and technical (IT) safeguards in order to provide security to Georgia Tech information systems. A log shall be maintained by the Chief of Police and ISD of all instances of access to or use of surveillance records. The log shall include the date and identification of the person or persons to whom access was granted with validation that each person has completed the required training. The right to view anything but live video will be very limited to ensure the integrity of this policy. In addition to internal reviews, annual audits will be conducted by the Office of Ethics and Compliance and a summary of surveillance trends such as number of times footage was shared with law enforcement must be published on the GTPD website to ensure public accountability.

Data Sharing:
Data collected using VMS or video surveillance devices affiliated with the Institute shall not be made public, nor shall recorded data be released to, provided to, or otherwise made accessible to, any person, party or entity inside or outside of the Institute, without the Institute's express permission, or as required by law. Any external law enforcement agencies seeking access to VMS data must provide a valid subpoena, warrant, or court order. All requests to obtain recorded data must be submitted through the Georgia Tech Police Department Records Division.

Transparency and Notice:
Signage must be posted at all vehicle and pedestrian entrances to the campus as well as any buildings with internal VMS. These signs must include the phrase "This Area May Be Subject To Video Surveillance" and a link to this policy. For any new or high-impact surveillance systems, GTPD must issue a notice using the Georgia Tech Emergency Notification System seven days prior to implementation. Individuals may request additional information regarding surveillance practices in accordance with applicable laws and Institute procedures, which will be answered by GTPD's or GTRI ISD's help desk. In addition all requests to obtain recorded data must be submitted through the Georgia Tech Police Department Records Division at this email address: openrecords@police.gatech.edu.

Oversight and Accountability:
Oversight of the Video Management System (VMS) will be the responsibility of the GTPD and GTRI respectively for their own camera systems. The GTPD chief and the GTRI ISD Head will be responsible for reviewing access logs on a regular basis so that access to surveillance records are authorized and appropriate. All employees with VMS access must complete a 'Privacy Ethics and Data Security' training annually to retain authorization. Unauthorized access or misuse of surveillance data will be investigated and result in disciplinary action in accordance with Institute policies. Quarterly audits of the access logs, permissions, and data handling practices will be conducted to ensure compliance and all personnel authorized to access or monitor surveillance systems must complete required training. The Institute will continue to maintain this

accountability by continually documenting all audit findings and new additions.

*Note: Originally based on Security Camera Policy with changes made to the structure. The black text is the original text from the Security Camera Policy and the red text is the new added text. We have taken inspiration from the University of North Alabama Video Monitor and Surveillance Activities Policy and GSU Video Surveillance Policy.